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|    |                                                                                 | <p>287, 290.) In addition, Defendant’s request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendant’s request is denied.</p> <p>Plaintiff’s motion for fees is granted. Plaintiff is awarded \$33,354.50 in attorneys’ fees and \$2,246.28 in costs.</p> <p>Plaintiff shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 3. | 2024-1403454<br>Giziotis vs.<br>Volkswagen<br>Group of America,<br>Inc.         | Trial motions to be ruled on at a later date.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 4. | 2024-1412353<br>Mitchell vs.<br>Carrasco                                        | Case Management Conference, only.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 5. | 2025-1529277<br>National<br>Funding, Inc. vs.<br>Golden<br>Construction,<br>LLC | <p>Plaintiff National Funding, Inc.’s motion for summary judgment on its complaint for breach of contract against defendants Charles Sanders and Golden Construction, LLC is denied.</p> <p>Defendant’s evidentiary objection to para. 3 and Ex. 2 of the Muren Declaration is sustained on hearsay grounds. The parties’ remaining objections are all overruled.</p> <p><u>Legal Standard</u></p> <p>Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1).</p> <p>“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” <i>Id.</i> For summary adjudication of a claim of damages, other than punitive damages, that does not entirely dispose of a cause action, defense, or issue of duty the parties must comply with Code of Civil Procedure section 437c(s)(1).</p> <p>A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . .” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal. 4<sup>th</sup> 826, 850. “A prima facie showing is one that is</p> |

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|    |                               | <p>sufficient to support the position of the party in question.” <i>Id.</i> at 851. Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. Code Civ. Proc. § 437c(p)(1); <i>S.B.C.C., Inc. v. St. Paul Fire &amp; Marine Ins. Co.</i> (2010) 186 Cal. App. 4<sup>th</sup> 383, 388.</p> <p>This means that a plaintiff who bears the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. <i>LLP Mortg. v. Bizar</i> (2005) 126 Cal.App.4<sup>th</sup> 773, 776. At that point, the burden shifts to the defendant “to show that a triable issue of one or more material facts exists as to that cause of action.” Code Civ. Proc. § 437c(p)(1).</p> <p>The moving party’s affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal.App.4<sup>th</sup> at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i></p> <p><u>Discussion</u></p> <p>“A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” <i>Miles v. Deutsche Bank National Trust Company</i> (2015) 236 Cal.App.4<sup>th</sup> 394, 402.</p> <p>With the Otero and Muren Declarations, Plaintiff has made a prima facie showing of on each element of its breach of contract the claim:</p> <ul style="list-style-type: none"> <li>- the contract [Otero Decl., ¶ 4 and E. 1; Muren Decl., ¶ 2];</li> <li>- performance [Otero Decl., Ex. 1];</li> <li>- breach [<i>id.</i>, pp 5-7 and Ex. 2]; and</li> <li>- damages. [<i>Id.</i>, ¶ 7 and Ex. 2.]</li> </ul> <p>With the Sanders Declaration, however, Defendants have shown a triable issue of fact as to, at least, the existence of the contract and breach. [Sanders Decl., ¶¶ 2-4.]</p> <p>Accordingly, the motion for summary judgment is denied.</p> |
| 6. | 2023-1356203<br>Guo vs. Zhang | <p><u>Demurrer</u></p> <p>Defendant Bo Zhang’s demurrer to Plaintiff Liao Guo’s Second Amended Complaint is overruled.</p> <p>A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4<sup>th</sup> 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |